

FIRST ENDORSEMENT

Chief Prosecutor, APU, Andre Applewhite, Civilian Complaint Review Board to Deputy Commissioner Tarek A. Rahman, Department Advocate's Office, January 17, 2025. Contents noted. Recommend approval of the negotiated plea agreement in DADS No. 2022-27395 against Lieutenant Justin Simms, Tax Registry No. 937542. The case was conferenced on January 7, 2025, before Assistant Deputy Commissioner of Trials Jeffrey Adler, who approved the dismissal of the charges in return for the recommended negotiated penalty of Departmental Imposed Training.

Andre Applewhite

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Chief Prosecutor, APU
New York City Civilian Complaint Review Board

**DISPOSITION OF CHARGES**

PD 468-142 (Rev. 8-89)-2

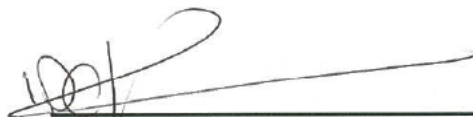
CASE NO.
C-031827BOOK & PAGE NO.
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PERSONNEL ORDER NO.

RANK/TITLE LT	SURNAME, SIMMS	FIRST JUSTIN	M.I.	COMMAND 069
SHIELD NO. 00000	TAX REGISTRY NO. 937542	SOCIAL SECURITY NO.	DATE APPOINTED 01/10/2005	
RANK/NAME OF COMPLAINANT				COMMAND
DATE OF CHARGES		DATE TRIAL COMMENCED		DATE TRIAL CONCLUDED

TRIAL COMMISSIONER

SPECIFICATION	DISPOSITION	RECOMMENDED PENALTY PLEA [X] TRIAL []
1. Lieutenant Justin Simms, on or about August 14, 2021, at approximately 0142, while assigned to 069 PCT and on duty, in the vicinity of 69th Precinct stationhouse, Kings County, abused his authority as a member of the New York City Police Department, in that he threatened to use force against § 87(2)(b) without sufficient legal authority	DISMISSED	TRAINING Respondent will comply with and complete re-training prescribed by the Department.
2. Lieutenant Justin Simms, on or about August 14, 2021, at approximately 0142, while assigned to 069 PCT and on duty, in the vicinity of 69th Precinct stationhouse, Kings County, abused his authority as a member of the New York City Police Department, in that he did not process § 87(2)(b) complaint regarding an officer without sufficient legal authority	DISMISSED	


FIRST DEPUTY COMMISSIONER

02/13/24
DATE

POLICE COMMISSIONER'S APPROVAL☒ Approved☐ Disapproved☐ Other Action (Describe)


POLICE COMMISSIONER

3/1/25
DATE

THIRD ENDORSEMENT

First Deputy Commissioner to Police Commissioner, February 13, 2025. Contents noted. I reviewed the negotiated plea in Disciplinary Case No. 2022-27395 (PODS Case No. C-031827) against Lieutenant Justin Simms, Tax No. 937542, with the recommendation that the Charges and Specifications against Lieutenant Simms be dismissed and that Lieutenant Simms receive Training. Assistant Deputy Commissioner, Trials Jeff S. Adler reviewed this case and made a favorable recommendation pertaining to the proposed settlement; I concur. **RECOMMEND APPROVAL.**



Tania L. Kinsella

FIRST DEPUTY COMMISSIONER

TIK/jpc

APPROVED

MAR 11 2025

JESSICA S. TISCH
POLICE COMMISSIONER